



File No.: EXP202213626

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Ms. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 09/11/2022. The complaint is directed against ONEY SERVICIOS FINANCIEROS E.F.C., S.A., with NIF A83113324 (hereinafter, the respondent). The reasons for the complaint are as follows: the complainant states that, in May 2022, the respondent initiated a monitoring procedure claiming an outstanding amount due. After the procedure concluded, a ruling was issued on 21/06/2022 declaring the late payment claim fee null and abusive, "it being inadmissible to integrate as due capital amounts charged as an abusive clause." Along with her complaint, she submitted a report from ASNEF dated 09/09/2022 regarding the inclusion of her personal data by the entity CABOT FINANCIAL SPAIN S.A.U. (hereinafter CABOT), following the assignment of the debt to the respondent, and an email dated 16/08/2022 addressed to the respondent indicating legal actions if her personal data were included in delinquency files.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 09/01/2023, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 09/01/2023 as noted in the acknowledgment of receipt in the file.

The respondent, in a letter dated 27/01/2023, stated that on 18/07/2022, the credit claim of the complainant was assigned to CABOT, although it was communicated that it was contentious; that in July 2022, the respondent proceeded to exclude all its clients from delinquency files, including the complainant, who was specifically deregistered on 22/07/2022. Therefore, from that date, the respondent is no longer the creditor of the unpaid credit, and any subsequent liability that may exist for inclusion in the file lies with the purchaser of the credit portfolio.

THIRD: On 06/02/2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

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FOURTH: On ***DATE.1, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.d) of the GDPR, sanctioned in accordance with the provisions of Article 83.5.a) of the aforementioned GDPR.

FIFTH: Upon notification of the initiation agreement, the respondent submitted a written statement of allegations on 08/06/2023, summarizing that on 21/06/2022, a ruling was issued declaring the non-payment commission null and abusive; that nevertheless, the debt continued to exist as certain, due, and enforceable, although not for the amount initially established, and in this regard, there may be disagreement about the amount recorded in the file but not about the existence of the debt or its deletion; that regarding the assignment of the debt, it is true that the debt should have been reduced due to the judicial ruling, but everything that happened after that operation is beyond the control and responsibility of the respondent, as they informed the buyer of the data and information related to the debt, including the judicial ruling; that Cabot has been requested to return the file and, as a courtesy, the debt has been canceled.

SIXTH: On 28/06/2023, the instructor of the proceedings agreed to open a period for the practice of

evidence, agreeing to the following:

- To consider reproduced for evidentiary purposes the complaint filed by the claimant and its documentation, the documents obtained and generated by the Inspection Services that are part of the file.
- To consider reproduced for evidentiary purposes the allegations to the initiation agreement submitted by the respondent and the accompanying documentation.
- To request from the respondent a copy of the private sales contract dated 18/07/2022, by which they assigned their credit with the claimant to the entity Cabot and information provided by the respondent to Cabot that the credit was subject to a monitoring procedure and was litigious.

On 06/07/2023, the respondent responded to the evidence presented, the content of which is in the file.

SEVENTH: On 29/08/2023, a Proposal for Resolution was issued stating that the Director of the AEPD should sanction the respondent for the infringement of Article 5.1.d) of the GDPR, classified under Article 83.5.a) of the GDPR, with a fine of €50,000 (fifty thousand euros).

On 07/09/2023, the respondent submitted a written statement of allegations summarizing: a brief chronological reference to the events that led to the proceedings; that regarding the actions taken after the notification of the judicial ruling resolving the filed claim, the respect for compliance deadlines of judicial resolutions and the response to the right of rectification of the affected parties, as well as the purposes of the credit information files; finally, requesting the filing of the proceedings.

EIGHTH: From the actions taken in the present proceedings, the following have been accredited:

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PROVEN FACTS

FIRST. On 09/11/2022, a written complaint from the claimant was received by the AEPD, in which they state that in May 2022, the respondent initiated a monitoring procedure to claim an outstanding amount (derived from a credit card) and that after the procedure concluded, a ruling was issued on 21/06/2022 by the Court of First Instance No. 14 of ***LOCALITY.1 declaring the non-payment commission null and abusive, "not being admissible to integrate as due capital amounts charged as an abusive clause"; in August, they were informed of the assignment of the credit to Cabot, responding that they should not include them in ASNEF because the matter was judged and they did not owe that amount; despite this, they were included in the file, creating a problem as they needed credit and could not apply for it.

SECOND. A request for an Alcampo Card has been submitted, which includes the personal and banking data of the claimant and their signature.

THIRD. A claim for a monitoring procedure filed by the respondent on 27/04/2022 is included, presented before the Court of First Instance of ***LOCALITY.1, in a claim for an amount, plus interest, expenses, and costs.

FOURTH. A ruling dated 21/06/2022 issued by the Court of First Instance No. 14 of ***LOCALITY.1 is included, in which the dispositive part states:

"Declares null and abusive the claim for non-payment commission, determining that such nullity results in the inadmissibility of the claim.

(...)"

The aforementioned resolution was notified on 01/07/2022.

FIFTH. A Credit Portfolio Sale Contract signed between the respondent and Cabot and formalized in Madrid on 18/07/2022 is included.

SIXTH. An Excel spreadsheet provided by the respondent is included, showing the claimant's credit amounting to €758.11, which was subject to monitoring for abusive clauses, which, according to the respondent, is part of the Excel document on CD that was delivered to Cabot upon formalization of the assignment contract.

SEVENTH. An email dated 16/08/2022 directed by the claimant's lawyer to ONEY is included, in which it is indicated:

"(...)

On behalf of the claimant, I am pleased to contact you regarding a letter received about the assignment of credit rights.

I inform you that ONEY initiated legal proceedings requesting said debt, a procedure that was lost before the Court of ***LOCALITY.1.

Therefore, my client owes nothing; on the contrary, it may be that you owe her for the abusive interest that was applied at the time, and this is not just said by this office, but also by the court.

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Therefore, we hereby inform you that since there is no judicial order against you, we instruct you to immediately remove the claimant from your files.

We also warn you that if you attempt to include my client in the ASNEF, we will initiate the appropriate legal actions in defense of the rights that protect us.

(...)

EIGHTH. A payment demand from EQUIFAX-IBERICA dated 09/09/2022 has been submitted, indicating that: "We inform you that on 08/09/2022, the entity CABOT SECURITISATION EUROPE LIMITED requested the registration in the ASNEF file of the following personal data related to the non-payment of the contract it maintains with said entity.

PRODUCT

UNPAID AMOUNT

QUALITY

CREDIT CARDS

780.80

HOLDER"

NINTH. In a document dated 27/01/2023, the respondent stated that:

"First.- The claimant, ..., signed a contract for an Alcampo card with Oney Servicios Financieros on 11 March 2008.

On 18 July 2022, through a private sales contract, formalized that same day before the Notary of the Illustrious College of Madrid, Mr. B.B.B., Oney Servicios Financieros E.F.C. S.A.U. (hereinafter, ONEY) carried out the assignment of its credit to the entity Cabot Securitisation Europe Limited (hereinafter, CABOT), located at Edificio Delta Nova 4 Av. Manoteras, 46, Madrid – 28050.

From that date, this entity acquired the status of new and sole creditor against several clients, including Ms. A.A.A. (now the claimant).

The aforementioned order was transferred by Oney to Cabot so that the buyer could carry out the necessary actions regarding the collection of the debt of Ms. A.A.A. In fact, at the time of formalizing the sale of the portfolio, Oney informed Cabot that this credit was a disputed credit. This is evidenced by the Excel sheet attached to this statement of allegations as Document No. 1, which specifically states that the credit related to the claimant was subject to an ongoing monitoring procedure. This extract is part of the Excel sheet that was delivered on a CD to Cabot, before a notary, at the time of formalization and signing of the public deed of credit assignment.

Second.- That in July 2022, the month in which the aforementioned credit assignment operation was carried out, ONEY excluded all clients who were part of this assignment from the solvency files in which they had been included. Specifically, ONEY proceeded to deregister Ms. A.A.A. from the mentioned solvency file of Experian on 22 July 2022 (as could be proven, if necessary, through a query to the Experian files).

(...)

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of 5 December, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

The reported facts materialize in the inclusion of the claimant's personal data in common credit information systems derived from a debt claimed in monitoring proceedings before the Court, whose resolution declared certain clauses abusive, thus there was no accuracy regarding the debt as it was not determined; subsequently, the debt, without being recalculated, is acquired by CABOT, who in turn includes the data in the delinquency file for the same amount, which is considered a supposed violation of the regulations on the protection of personal data.

Article 58 of the GDPR, Powers, establishes in its paragraph 2:

“2. Each supervisory authority shall have all of the following corrective powers:

(...)

i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;

(...)”

III

The GDPR addresses in its Article 5 the principles that must govern the processing of personal data and mentions among them the principle of accuracy, stating that:

“1. Personal data shall be:

(...)

d) accurate and, where necessary, kept up to date; every reasonable step must be taken to ensure that personal data that are inaccurate are erased or rectified without delay (‘accuracy’);

(...)”

What is stated in the aforementioned regulation must be related to Article 5, Accuracy of data, of the new Organic Law 3/2018, of 5 December, on the Protection of Personal Data and Guarantee of Digital Rights.

Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), which establishes in its section 1 that:

“1. In accordance with Article 5.1.d) of Regulation (EU) 2016/679, the data shall be accurate and, where necessary, kept up to date.

2. For the purposes set out in Article 5.1.d) of Regulation (EU) 2016/679, the data controller shall not be held liable, provided that it has taken all reasonable measures to ensure that the inaccuracy of personal data is erased or rectified without delay, with respect to the purposes for which they are processed, when the inaccurate data:

a) Have been obtained by the controller directly from the data subject.

b) Have been obtained by the controller from a mediator or intermediary in cases where the applicable regulations in the sector to which the data controller belongs establish the possibility of intervention by a mediator or intermediary who collects the data from the data subjects in their own name for transmission to the controller. The mediator or intermediary shall assume the responsibilities that may arise in the event of communication to the controller of data that do not correspond to those provided by the data subject.

c) Have been processed by the controller after having been received from another controller by virtue of the exercise by the data subject of the right to data portability in accordance with Article 20 of Regulation (EU) 2016/679 and the provisions of this organic law.

d) Have been obtained from a public register by the controller.”

In relation to this principle, Recital 39 of the GDPR states, among other issues, that: “(39) (...) to ensure that personal data is not kept longer than necessary, the data controller must establish deadlines for its deletion or periodic review. All reasonable measures must be taken to ensure that inaccurate personal data is rectified or deleted.”

And Recital 71: “(...) in order to ensure fair and transparent processing with respect to the data subject, taking into account the specific circumstances and context in which personal data is processed, the data controller must use appropriate mathematical or statistical procedures for profiling, apply appropriate technical and organizational measures to ensure, in particular, that factors introducing inaccuracies into personal data are corrected and that the risk of error is minimized, secure personal data in a way that takes into account the potential risks to the interests and rights of the data subject, and prevent, among other things, discriminatory effects on individuals based on race or ethnic origin, political opinions, religion or beliefs, trade union membership, genetic condition or health status or sexual orientation, or processing that leads to measures producing such effects.”

IV

The infringement attributed to the respondent is classified in Article 83.5 a) of the GDPR, which considers that the infringement of “the basic principles...

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for the processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9” is subject to penalties, according to paragraph 5 of the aforementioned Article 83 of the cited Regulation, “with administrative fines of up to €20,000,000 or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount.”

The LOPDGDD in its Article 71, Infractions, states that: “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infractions.”

And in its Article 72, it considers for the purposes of prescription that: “Infractions considered very serious:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the infractions that involve a substantial violation of the articles mentioned therein are considered very serious and will prescribe in three years, particularly the following:

(...)

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)”

V

1. From the documentation in the file, it is evident that the respondent has violated Article 5.1.d), principle of accuracy, in relation to Article 5 of the LOPDGDD, Accuracy of data, by transferring the claimant's data to a third party, the purchaser of the credit, who in turn included them in the ASNEF file, linked to a debt over which there was a judicial dispute and whose subsequent ruling declared that it contained abusive interests, thus there was no certainty regarding it and it needed to be recalculated. In relation to the aforementioned article and its update (which would be the manifestation of the principle of accuracy that is understood to be breached), it requires that “reasonable measures be taken to ensure that inaccurate personal data are erased or rectified without delay concerning the

purposes for which they are processed.”

That is to say, Article 5.1.d) does not impose disproportionate measures to update the data, but rather reasonable ones, taking into account the available means and the purpose for which the data is used. This is also expressed in Recital 39 of the GDPR, “(...) to ensure that personal data are not kept longer than necessary, the data controller must establish retention periods for their deletion or periodic review. All reasonable measures must be taken to ensure that inaccurate personal data are rectified or deleted.”

2. In the present case, the respondent, as a consequence of the claimant's failure to fulfill their payment obligations, owing the amount of €758.11, filed a claim for monitoring procedure in accordance with Articles 812 and

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following the LEC in a claim for amounts plus interest, expenses, and costs before the Court of First Instance of ***LOCALITY.1 on 04/27/2022, being issued by the Court of First Instance No. 14 of ***LOCALITY.1, Order on 06/21/2022 annulling certain commissions as abusive.

The aforementioned Order states in its dispositive part that: “The claim for non-payment commission is declared null and abusive, determining that such nullity results in the inadmissibility of the claim. (...)”

Despite this, the claimed debt was registered in the delinquency file by the respondent until 07/22/2022, when it was removed, motivated by the fact that on 07/18/2022, it formalized through a private sales contract and elevated to public before the Notary of the Illustrious College of Madrid Mr. B.B.B., the assignment of the credit to the entity CABOT, which in turn would register the claimant's data in the ASNEF file for the same amount, as evidenced by the request from EQUIFAX-IBERICA dated 09/09/2022.

Therefore, the assigned debt in the aforementioned legal transaction was not updated without the respondent having recalculated it; the respondent has stated that it informed CABOT that the debt was disputed, but both the assigned amount and the amount included in ASNEF by the assignee remained the same.

Furthermore, from the date of notification of the aforementioned Order 07/01/2022, until 07/22/2022 (after the date of the credit assignment), the debt was registered in the delinquency file by the respondent without the amount being recalculated and communicated to the Experian file, as it has stated in a written document dated 01/27/2023: “That in July 2022, the month in which the aforementioned credit assignment operation was carried out, ONEY excluded all customers who were part of this assignment from the solvency files in which they had been included. Specifically, ONEY proceeded to remove Mrs. A.A.A. from the mentioned solvency file of Experian on July 22, 2022 (as could be proven, if necessary, through a query to the Experian files).”

Likewise, in a written document dated 06/08/2023, the respondent confirmed the facts stating that “However, while it is true that Oney did not act diligently in this case, reducing the amount of the debt by virtue of the provisions of the Court's Order, given that the non-payment commission was declared null and abusive, it is also true that the customer's debt remained real, certain, due, and enforceable, although not for the indicated amount.”

And that “Regarding the assignment of information related to this debt by Oney to the entity Cabot, it is true that the amount should have been reduced by 240 euros, due to the declaration of nullity of the non-payment commission by the court...”

3. The respondent in allegations to the Proposal for Resolution has stated that when the credit assignment contract was formalized, the assignee was informed that some credits were considered contentious, including the credit affecting the claimant, and proof of this is the Excel sheet that was attached to the

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written allegations regarding the initiation of the sanctioning agreement and that access was granted to

the buyer to the data and information, including the judicial order which was not final as it was subject to appeal within a period of 20 working days; furthermore, since the judicial resolution necessitated the rectification of the data held by the claimant in the solvency file, it seems reasonable that the period of fifteen working days from the receipt of the judicial resolution until the effective removal of their data from the file is more than reasonable to consider the obligations regarding the rectification of the aforementioned data fulfilled.

However, regarding this last argument, it must be dismissed since the principle of accuracy requires that the data controller minimize the risk of inaccuracy, especially considering that the filing of a possible appeal did not produce suspensive effects, as well as the harm that maintaining the claimant's data in a credit information system posed to their rights and freedoms. Nevertheless, the respondent is not being attributed a violation of the GDPR solely for maintaining the debt in the solvency file due to an inaccurate debt according to the order issued on 20/06/2022 by the Court of First Instance No. 14 of ***LOCALITY.1.

It is true that the respondent proceeded to remove the data from the solvency file, but it is also true that the aforementioned removal was motivated by the formalization of the contract for the sale of overdue credits carried out with Cabot on 18/07/2022, overdue credits which included the one related to the claimant.

Therefore, the assignment of the credit that the respondent maintained with the claimant in the legal transaction formalized on 18/07/2022 with Cabot, which he subsequently included in the ASNEF file, is also not in accordance with the regulations on the protection of personal data, Article 5.1.d) of the GDPR.

VI

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question.

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as well as the number of affected parties and the level of damages and losses they have suffered;

b) the intent or negligence in the infringement;

c) any measures taken by the responsible party or data processor to mitigate the damages and losses suffered by the affected parties;

d) the degree of responsibility of the responsible party or data processor, taking into account the technical or organizational measures they have applied pursuant to Articles 25 and 32;

e) any previous infringement committed by the responsible party or data processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the responsible party or data processor reported the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the responsible party or data processor in relation to the same matter, compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under

Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement.

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

"2. According to the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the responsible party or data processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any affected party."

- In accordance with the transcribed provisions, and without prejudice to the outcome of the instruction of the procedure, for the purpose of determining the amount of the sanction to be imposed in this case for the infringement classified in Article 83.5.a) and Article 5.1.d) of the

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GDPR for which the respondent is responsible, an initial assessment considers the following factors to be concurrent:

****Aggravating circumstances:****

The nature and severity of the infringement; the facts revealed affect a basic principle related to the processing of personal data, such as accuracy, which the regulation penalizes with the utmost severity; it should not be forgotten that the debt was not determined in terms of its certainty since the Court had declared certain concepts of it to be abusive, making it necessary to recalculate it after the judicial resolution (Article 83.2.a) of the GDPR).

The activity of the allegedly infringing entity is linked to the processing of personal data of both clients and third parties. In the activity of the claimed entity, the processing of personal data is essential, so given its business volume, the significance of the conduct subject to this claim is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

****Intent or negligence in the infringement.**** In this case, there is a serious lack of diligence in the actions of the respondent as the debt was ceded and included in solvency files by the assignee without its amount being certain, as it was not determined in terms of its accuracy. Connected also with the degree of diligence that the data controller is obliged to exercise in compliance with the obligations imposed by data protection regulations, the SAN of 17/10/2007 can be cited. Although it was issued before the GDPR came into force, its ruling is perfectly extrapolable to the case we are analyzing. The ruling, after referring to the fact that entities whose activities involve continuous processing of data from clients and third parties must observe an adequate level of diligence, specified that "(...). the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, special consideration must be given to the professionalism or lack thereof of the subject, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard" (Article 83.2.b) of the GDPR).

Therefore, in accordance with the above, a sanction of €50,000 (fifty thousand euros) for infringement of Article 5.1.d) of the GDPR is deemed appropriate.

****V||****

Having confirmed the infringement, it is appropriate to impose on the responsible party the adoption of adequate measures to adjust its actions to the regulations mentioned in this act, in accordance with

the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “d) order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified time.”

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In the present case, the respondent is required to, within two months from the notification of this resolution:

- Demonstrate the adoption of appropriate measures to prevent future incidents similar to those that have led to the initiation of this sanctioning procedure, violating the principle of data accuracy, Article 5.1.d) of the LOPGDD, as a result of the transfer of such data to a third party, related to a debt, which a court ruling declared to contain abusive interest, with no certainty regarding the same, which should have been recalculated.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, and such conduct may lead to the initiation of an additional administrative sanctioning procedure.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on ONEY SERVICIOS FINANCIEROS EFC SA, with NIF A83113324, for infringement of Article 5.1.d) of the GDPR, classified in Article 83.5.a) of the GDPR, a fine of €50,000 (fifty thousand euros).

SECOND: TO ORDER ONEY SERVICIOS FINANCIEROS EFC, S.A., with NIF A83113324, that pursuant to Article 58.2.d) of the GDPR, within two months from this resolution, demonstrate compliance and the adoption of appropriate measures to adjust its actions to the provisions of Article 5.1.d) of the GDPR.

THIRD: TO NOTIFY this resolution to ONEY SERVICIOS FINANCIEROS E.F.C., S.A.

FOURTH: To warn the sanctioned party that they must fulfill the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National

Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

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